

4.2.1 First level of the convergent approach: amendments to a party's case within the meaning of Article 12(4) RPBA 2020

a) Principles

The primary object of the appeal proceedings is to review the decision under appeal in a judicial manner (Art. 12(2) RPBA 2020). In view of this primary object, Art. 12(2) RPBA 2020 provides that a party's appeal case has to be directed to the facts, objections, evidence and requests on which the decision under appeal was based.

At the first level of the convergent approach, the rule according to Art. 12(4), first sentence, RPBA 2020 is that any part of a party's appeal case

- that does not meet the above-mentioned requirements of Art. 12(2) RPBA 2020, and
- for which the party has not demonstrated that this part was admissibly raised and maintained in the proceedings leading to the decision under appeal

is to be regarded as an amendment of the party's case.

Accordingly, and as pointed out by the Legal Board in J 14/19, the decision under appeal is the point of reference for assessing under Art. 12(4) RPBA 2020 whether any part of the appeal case is an amendment.

- ##### b) Submissions on appeal not directed to requests, facts, objections, arguments or evidence on which the decision under appeal was based

(i) Requests

In J 3/20 the appellant (applicant) presented submissions concerning R. 139 EPC (designation allegedly mistakenly withdrawn in the parent case before filing the divisional application at issue in the proceedings in hand) for the first time in its statement of grounds of appeal. The Legal Board observed that, during the first-instance proceedings, the applicant had not given the slightest hint that the representative had withdrawn the designation concerned in the parent application contrary to its true intention nor had it requested a correction of the withdrawal, even though it had already been aware of the relevant facts at that time and thus could and should have presented them. The appellant had thus presented a completely fresh case for the first time in the appeal proceedings.

In T 1421/20 the auxiliary requests at issue (0a, 0b and 0c), which were filed with the statement of grounds of appeal, had not been part of the proceedings before the examining division. The board considered them to be amendments to the appellant's (applicant's) case, the admission of which was at its discretion (Art. 12(2) and (4) RPBA 2020).

(ii) Objections and evidence

In T 28/20, an inventive-step objection raised in the statement of grounds of appeal against auxiliary request 1 started from closest prior art (D4) which was different from the closest prior art relied upon (against this request) in the first-instance opposition proceedings (D9). The board held that this new objection constituted an amendment of the appellant's case within the meaning of Art. 12(4) RPBA 2020, since it was not directed to an objection on which the decision under appeal was based (Art. 12(2) RPBA 2020). As the appellant had not explained why the new objection had first been raised on appeal, the board made use of its discretion not to admit it under Art. 12(4) RPBA 2020.

For a further example where the objections put forward in the statement of grounds of appeal did not meet the requirements of Art. 12(2) RPBA 2020 and were, in exercise of the board's discretion (Art. 12(4) and Art. 12(6), second sentence, RPBA 2020), not admitted, see T 81/20.

c) Not admissibly raised and maintained at first instance

In T 81/20 the board considered that the appellant (opponent) had not **demonstrated** that the objections of lack of original disclosure, which had been raised in its statement of grounds of appeal, but on which the decision under appeal was not based, had been admissibly raised and maintained in the opposition proceedings leading to the decision under appeal. Since, moreover, the board was of the opinion that the appellant could and should already have submitted the newly raised objections in the first-instance proceedings, it exercised its discretion under Art. 12(2), (4) and (6) RPBA 2020 not to admit these objections.

4.2.2 Second and third levels of the convergent approach: amendments to an appeal case within the meaning of Article 13(1) and (2) RPBA 2020

a) Principles

In T 247/20 and T 2988/18 the boards, based on a systematic interpretation of Art. 13(1) and (2) RPBA 2020 and Art. 12(2), (3) and (4) RPBA 2020, held that an amendment to a party's appeal case was a submission which was not directed to the requests, facts, objections, arguments and evidence relied on by the party in its statement of grounds of appeal or its reply. In other words, it went beyond the framework established therein.

This definition was explained in T 247/20 as follows: the RPBA 2020 contained no definition of "amendment to a party's appeal case", but they assisted in defining what was meant by an "amendment" and by "a party's complete appeal case". Art. 12(3) RPBA 2020 required that the statement of grounds of appeal and the reply contain "a party's complete appeal case". This meant that they needed to set out why the decision under appeal should be reversed, amended or upheld, and should specify expressly "all the requests, facts, objections, arguments and evidence relied on". Art. 12(4) RPBA 2020 defined what was meant by an **amendment vis-à-vis the first-instance proceedings**, namely everything that did not comply with Art. 12(2) RPBA 2020. In effect, an amendment was – apart from

a clearly defined exception – what was not "directed to the requests, facts, objections, arguments and evidence on which the decision under appeal was based". The board then transferred this definition to **amendments to a party's appeal case**. In the case in hand, the arguments which the appellant had presented during the oral proceedings and to which respondent 2 objected were all aimed at illustrating, refining or further developing the arguments already presented with the grounds of appeal and at countering the arguments made by respondent 2 in this context and, in the board's view, did not amount to an amendment of the appellant's appeal case. The board added that oral proceedings would serve no purpose if the parties were limited to presenting a mere repetition of the arguments put forward in writing. Instead, parties had to be allowed to refine their arguments and even to build on them, provided they stayed within the framework of the arguments, and of course the evidence, submitted in a timely fashion in the written proceedings.

In J 14/19, the Legal Board also found that, on a systematic interpretation, the question whether a submission resulted in an "amendment to a party's appeal case" within the meaning of Art. 13 RPBA 2020 had to be answered using the list of possible components of an appeal case in Art. 12(2) RPBA 2020. It too concluded that submissions not directed to requests, facts, objections, arguments or evidence relied on in the statement of grounds of appeal or in the reply amounted to an amendment to the appeal case. That also followed from Art. 12(3) RPBA 2020, which likewise referred to those components.

In T 100/18, however, the board found that, while Art. 12(3) RPBA 2020, invoked by the appellant (opponent), set out requirements to be met by the statement of grounds of appeal and the reply, it did not define what was meant by an amendment to an appeal case. The board thus looked only at whether the requirements under Art. 12(2) RPBA 2020 had been met. The content of the letter at issue in the case in hand, which had not been received until after expiry of the period for the reply, did not go beyond the requests, facts, arguments and evidence dealt with in the decision under appeal. It therefore met the requirements of Art. 12(2) RPBA 2020 and was aimed at achieving the main purpose of the appeal proceedings, namely a review of the decision under appeal in a judicial manner.

In J 14/19 the Legal Board also held that, at the level of the EPC, the possibility of refusing to admit late-filed submissions was provided for in Art. 114(2) EPC (supplemented by Art. 123(1) EPC for amendments to a patent or patent application). Under Art. 114(2) EPC, a late-filed submission containing **factual elements** could be disregarded.

The board in T 482/18 only partly endorsed the view taken in T 1914/12 that the boards had no discretion when it came to admitting late-filed arguments based on facts already at issue in the proceedings. Art. 114(2) EPC 1973 (left unchanged by the EPC 2000 revision) was not a basis for rejecting **arguments**. However, it interpreted "argument" narrowly, treating the term as equivalent to **submissions concerning interpretation of the law** (on this see, chapter V.A.4.2.2.i) and n) "New objection based on document already on file – new arguments with factual elements"). It also rejected the view that facts apparent from

the patent documents were part of the proceedings without having been expressly asserted (see chapter V.A.4.2.2.1)).

Several decisions have pointed out that submissions made by a party during the preceding administrative proceedings are not automatically part of any subsequent appeal proceedings where they have not been reiterated in a substantiated manner at the outset of those appeal proceedings (see e.g. T 1577/19, T 276/17 and T 2024/16, reported in chapter V.A.4.2.2.b) "Submissions at first instance not automatically part of appeal case"). In T 1439/16 the board underlined that it was the appellant who defined the extent of the appeal and that, according to Art. 12(3) RPBA 2020, the statement of grounds of appeal had to contain a party's complete case. It had been the choice of the appellant in the case in hand to make an objection of added subject-matter only to claim 1 and not to claim 8 in the statement setting out the grounds of appeal.

In T 319/18 the board pointed out that it was established jurisprudence of the boards that requests that were not self-explanatory became effective only on the date on which they were substantiated (see. e.g. T 1732/10). See also T 2457/16. See also chapter V.A.5.12.6 "Unsubstantiated requests" on the case law under the RPBA 2007.

b) Submissions at first instance not automatically part of appeal case

Citing G 9/92 and G 4/93 (OJ 1994, 875), the board in T 1577/19 observed that any **procedural requests or statements** made by a party during the administrative proceedings at first instance (here the requests examined in the contested decision) had no effect in any subsequent appeal proceedings unless they had been specifically reiterated and substantiated at the outset in the notice of appeal and the statement of grounds.

In the same vein, the board in T 276/17 observed that it followed from Art. 12(3) RPBA 2020 that **facts and evidence** submitted in the opposition proceedings were not automatically part of the appeal case. It was not enough for the grounds of appeal (submitted here by the patent proprietor) to make a sweeping reference, without any further explanation, to the minutes of the oral proceedings and to the arguments and facts mentioned therein. The board therefore considered the facts and evidence submitted later in support of inventive step to be an amendment to the appeal case within the meaning of Art. 12(3) RPBA 2020 and disregarded them.

In T 241/18 the appellant (opponent) filed an **inventive-step attack** which, while having been advanced in the notice of opposition and pursued at the oral proceedings before the opposition division, had not been invoked in the statement of grounds of appeal (but, rather, only after notification of the summons to oral proceedings). Raising this objection therefore constituted an amendment to the appellant's case. Since the appellant had not shown or even argued that there were any exceptional circumstances (Art. 13(2) RPBA 2020), the board did not take the new attack into account. Similarly T 2024/16.

The board in T 1439/16 likewise did not accept the appellant's (opponent's) argument that the **objection of added matter** raised against a claim in opposition proceedings (which

was substantially identical to claim 8, objected to at the oral proceedings before the board) was implicitly part of the appeal proceedings. The board pointed out that it was the appellant who defined the extent of the appeal and that, according to Art. 12(3) RPBA 2020, the statement of grounds of appeal had to contain a party's complete case. It had been the choice of the appellant in the case in hand to make an objection of added subject-matter only to claim 1 and not to claim 8 in its statement setting out the grounds of appeal. The board refused to admit this objection, raised for the first time at the oral proceedings, as detrimental to procedural economy and for reasons of procedural fairness.

In T 1108/16 the board held that a new line of argument not included in the statement of grounds of appeal or reply clearly had to be treated as an amendment to the appeal case, even if it had been submitted and maintained in the proceedings at first instance.

c) Request for dismissal of the appeal and maintenance of the patent

In T 1309/16 the patent proprietor had not submitted any reply to the opponent's grounds of appeal and, instead, only requested, about one month before the oral proceedings, that the appeal be dismissed and the patent maintained. The board observed that the primary purpose of the appeal proceedings was to judicially review the contested decision which had rejected the opposition (Art. 12(2) RPBA 2020) and the patent proprietor did not have to request the appeal's dismissal for that to happen. The board considered that there was no need to decide whether the patent proprietor's request was formally admissible under Art. 13(2) RPBA 2020 as it was anyway aimed at what the board had to examine owing to the opponent's appeal.

d) Deletion of claims or alternatives within claims

The deletion of a claim category, of dependent claims or of alternatives within claims were held not to be amendments to the appeal case within the meaning of Art. 13 RPBA 2020 in the circumstances at issue in T 1480/16, T 2638/16, T 884/18, T 914/18, T 995/18, T 1151/18 and T 1857/19. By contrast, the boards in T 713/14, T 1224/15, T 2222/15, T 1597/16, T 1439/16, T 1569/17, T 853/17, T 306/18 and T 482/19, which likewise concerned deletions of claims or of alternatives embodiments within claims, regarded them as amendments and so exercised their discretion under Art. 13 RPBA 2020 (in most cases, however, ultimately admitting the requests concerned, though not in e.g. T 482/19 and T 2222/15).

A factor frequently considered by the boards when assessing whether a deletion amounted to an amendment was whether it would entail thoroughly re-evaluating the matters at issue, alter the factual and legal scope of the proceedings and require a fresh discussion of novelty or inventive step or whether, instead, it would merely reduce the complexity of the proceedings by eliminating one of the matters in dispute. As summarised by the board in T 914/18, the deletion of an alternative and of dependent claims have been considered to be mere restrictions of the subject-matter that did not constitute an amendment to a party's case within the meaning of Art. 13 RPBA 2020, provided they did not lead to a **fresh case**.